

Rental Application Fast-Track Checklist — New South Wales

Win the lease, even with no rental history or connections.

Correct as at July 2026. General information only, not legal advice. NSW's rental laws changed significantly through 2024–2026 — this checklist reflects the current framework.

Section 1 — Know Your Rights Before You Apply

- ☐ [] **Know you can't be charged extra fees to apply.** Since 31 October 2024, tenants and prospective tenants cannot be charged for costs like background checks or fees for preparing a tenancy agreement — if you're asked to pay to apply, that's not permitted.
- ☐ [] **Understand the standard form agreement.** NSW tenancy agreements must use the standard form prescribed under Schedule 1 of the Residential Tenancies Regulation 2019 (current version from 19 May 2025) — this sets out mandatory terms that can't be varied to your disadvantage.
- ☐ [] **Know your protection against no-grounds evictions from day one.** Since 19 May 2025, landlords cannot end a tenancy without a valid, documented reason — this applies from the very start of your tenancy, giving you more long-term security than in the past.

Section 2 — Documents to Have Ready

- ☐ [] **Photo ID** (driver's licence or passport).
- ☐ [] **Proof of income** — payslips, an employment letter, or for students/first-time renters: Centrelink statements, scholarship confirmation, or a guarantor's supporting documents.
- ☐ [] **Rental history/references** — previous landlord/agent details, or alternative references (employer, academic, personal) if you're a first-time renter.
- ☐ [] **Bank statements**, if requested, showing regular income/savings patterns.
- ☐ [] **A brief introduction** outlining your situation and rental intentions — not mandatory, but can help you stand out where agents allow supplementary information.

Section 3 — The Application Itself

- ☐ [] **Apply promptly after inspecting** — competitive Sydney properties can attract many applications within the first day or two.
- ☐ [] **Only pay fees that are genuinely permitted** — remember, application/background-check fees are banned; if in doubt, ask NSW Fair Trading.
- ☐ [] **Attend the inspection in person if possible** — a strong signal of genuine interest.
- ☐ [] **Follow up politely, once**, a few days after applying if you haven't heard back.

Section 4 — Renting With Pets (A Major 2025 Change)

- ☐ [] **Know that landlords can no longer issue blanket pet refusals.** Since May 2025, landlords must provide approval or a reason from a defined list of valid grounds when refusing a pet request.
- ☐ [] **Understand the 21-day response rule.** If a landlord doesn't respond to your written pet request (via the NSW Fair Trading Pet Application Form, Part A) within **21 days**, the request is **automatically approved**.
- ☐ [] **Know landlords cannot charge extra rent or bond because you have a pet.**
- ☐ [] **Assistance animals are protected separately** under federal disability discrimination law and don't require landlord consent.

Section 5 — For Students & First-Time Renters Specifically

- ☐ [] **Consider a guarantor** if you don't have independent rental/income history — confirm the specific agency genuinely accepts this before assuming it will help your case.
- ☐ [] **Highlight stability signals** — enrolment confirmation, course length, stable casual work.
- ☐ [] **Consider co-applying with reliable housemates** for a combined, stronger application.
- ☐ [] **Don't be discouraged by rejections** — apply for multiple properties in parallel in a competitive market like Sydney.

Quick Reference — Key NSW Rental Application Rules (2024–2026)

RULE	DETAIL
Extra application fees	Banned since 31 October 2024
Standard form agreement	Mandatory, current version from 19 May 2025
No-grounds evictions	Abolished since 19 May 2025
Pet request response	21 days, or automatically approved
Extra pet bond/rent	Not permitted
Regulator	NSW Fair Trading

